

HOUSE BILL 2653

By Stevens

AN ACT to repeal Chapter 55 of the Private Acts of 1951; as amended by Chapter 68 of the Private Acts of 1957; Chapter 84 of the Private Acts of 1961; Chapter 115 of the Private Acts of 1963; Chapter 191 of the Private Acts of 1967; Chapter 143 of the Private Acts of 1969; Chapter 263 of the Private Acts of 1972; Chapter 391 of the Private Acts of 1972; Chapter 73 of the Private Acts of 1975; Chapter 53 of the Private Acts of 1977; Chapter 149 of the Private Acts of 1981; Chapter 4 of the Private Acts of 1985; Chapter 155 of the Private Acts of 1998; Chapter 160 of the Private Acts of 2002; Chapter 59 of the Private Acts of 2012; Chapter 47 of the Private Acts of 2012 and Chapter 47 of the Private Acts of 2014; and any other acts amendatory thereto, relative to the Rutherford County Highway Commission.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 55 of the Private Acts of 1951, as amended by Chapter 68 of the Private Acts of 1957, Chapter 84 of the Private Acts of 1961, Chapter 115 of the Private Acts of 1963, Chapter 191 of the Private Acts of 1967, Chapter 143 of the Private Acts of 1969, Chapter 263 of the Private Acts of 1972, Chapter 391 of the Private Acts of 1972, Chapter 73 of the Private Acts of 1975, Chapter 53 of the Private Acts of 1977, Chapter 149 of the Private Acts of 1981, Chapter 4 of the Private Acts of 1985, Chapter 155 of the Private Acts of 1998, Chapter 160 of the Private Acts of 2002, Chapter 47 of the Private Acts of 2012, Chapter 59 of the Private Acts of 2012, and Chapter 47 of the Private Acts of 2014, and any other acts amendatory thereto, are repealed.

SECTION 2. There is hereby created a County Highway Commission for Rutherford County, Tennessee. The County Highway Commission is divided into seven (7) Road Board Zones, as follows:

Road Board Zone I. Road Board Zone I shall be composed of County Commission districts 5, 11, and 12.

Road Board Zone II. Road Board Zone II shall be composed of County Commission districts 1, 2, and 3.

Road Board Zone III. Road Board Zone III shall be composed of County Commission districts 4, 6, and 7.

Road Board Zone IV. Road Board Zone IV shall be composed of County Commission districts 8, 9, and 10.

Road Board Zone V. Road Board Zone V shall be composed of County Commission districts 17, 18, and 21.

Road Board Zone VI. Road Board Zone VI shall be composed of County Commission districts 13, 15, and 16.

Road Board Zone VII. Road Board Zone VII shall be composed of County Commission districts 14, 19, and 20.

The Road Board Zones shall be comprised of one (1) or more county commission districts, as established by the county legislative body pursuant to its redistricting plan adopted in 2021. The boundaries of the Road Board Zones shall conform to the boundaries of county commission districts and shall be adjusted from time to time as necessary to maintain substantially equal population among Road Board Zones following any lawful redistricting.

Members of the County Highway Commission shall be elected to staggered four-year terms, with elections conducted in accordance with the following cycle:

(a) Road Board Zones 2, 3, 5, and 6 shall be elected in the general election held in 2028 and every four (4) years thereafter; and

(b) Road Board Zones 1, 4, and 7 shall be elected in the general election held in 2026 and every four (4) years thereafter.

Each member shall serve for a term of four (4) years and until his or her successor is elected and qualified.

The county commission districts referred to in this section shall be those established by the county legislative body in the redistricting plan adopted in 2021. The county legislative body is authorized to undertake redistricting from time to time as necessary for the election of road board members from Road Board Zones that are substantially equal in population. Such Road Board Zones shall be defined so that they contain one (1) or more county commission districts and so that their boundaries conform to those of county commission districts.

SECTION 3. The County Highway Commission herein created shall meet monthly at a time and place to be fixed by the County Highway Commission. At its first meeting each September, the County Highway Commission shall elect a chairperson from among its members and shall elect one (1) of its members as vice chair, who shall exercise all the powers and duties of the chairperson in their absence. The chairperson may call special meetings to be held at any time or place by giving actual notice to all County Highway Commissioners. The concurring vote of four (4) members of the County Highway Commission shall be necessary to authorize the transaction of any business. All meetings of the County Highway Commission shall comply with applicable open meetings laws. The County Mayor may attend meetings of the County Highway Commission and take part in its deliberations, but shall not have a vote.

SECTION 4. That there is hereby created the office of County Highway Superintendent for Rutherford County, Tennessee. At the regular August election for county officers to be held August 2024, and every four (4) years thereafter, there shall be elected, by the qualified voters of the county, a County Highway Superintendent. No person shall be qualified to hold the office of County Highway Superintendent unless he or she meets the requirements for the Chief Administrative Officer of a County Highway Department under the County Uniform Highway Law, codified in Tennessee Code Annotated, § 54-7-101 et seq.

Said County Highway Superintendent shall have all the powers and duties set forth in the County Uniform Highway Law, including general control over the location, relocation, construction, reconstruction, repair and maintenance of the county road

systems of the county. Said County Highway Superintendent shall also have direct supervision of the work, construction, and maintenance of all county public drainage easements on the official list of recognized public drainage easements in Rutherford County as approved by the county legislative body.

It shall be the duty of the County Highway Superintendent to make such purchases and employ such personnel as may be necessary to carry out the purposes of this Act. In making such purchases, the County Highway Superintendent shall act as the chief purchasing authority for the County Highway Department and shall comply with the Tennessee County Uniform Highway Law, codified in Tennessee Code Annotated, § 54-7-101 et seq., including § 54-7-113, and all other applicable general laws.

Except as otherwise provided by general law, purchases with an estimated cost in excess of Fifty Thousand Dollars (\$50,000) shall be made only after public advertisement and competitive bidding, and any resulting contract shall be awarded only upon approval of the County Highway Commission.

The County Highway Superintendent is authorized to make non-emergency purchases not exceeding Fifty Thousand Dollars (\$50,000) without public advertisement or competitive bidding, subject to the following quotation requirements, which shall mirror those applicable to the County's Purchasing Agent under Chapter 17 of the Private Acts of 2017, as amended: non-emergency purchases exceeding Twenty Thousand Dollars (\$20,000), but not exceeding Fifty Thousand Dollars (\$50,000), shall, whenever possible, be based upon at least three (3) written or otherwise documented price quotations.

In the event of an emergency, as defined by Tennessee Code Annotated, § 54-7-113, the County Highway Superintendent may waive normal purchasing procedures; provided, that a written report documenting the nature of the emergency, the expenditures made, and the vendors contacted is submitted to the County Highway Commission.

Notwithstanding the foregoing, if the purchasing thresholds or quotation requirements applicable to the County's Purchasing Agent under Chapter 17 of the Private Acts of 2017, as amended, are increased or otherwise modified, or if higher purchasing thresholds or quotation requirements are set in the future by resolution by the county legislative body pursuant to the authority granted in Tennessee Code Annotated, § 12-3-1212, then the purchasing authority of the County Highway Superintendent shall automatically adjust to reflect those changes without the necessity of further amendment to this Act.

The County Highway Superintendent shall have the authority to make expenditures from the highway fund and to issue warrants drawn against the road fund of Rutherford County under his or her signature. All expenditures shall conform to the budget of the Rutherford County Highway Department as approved by the county legislative body.

The County Highway Superintendent has all authority over personnel as provided in the County Uniform Highway Law, including being authorized to determine the total number of employees of the County Highway Department, to determine personnel policies, hours of work, to establish job classifications, and to establish policies and wages within the classifications. The County Highway Commission may provide, for the official use of the Superintendent, an automobile, together with maintenance and operating expenses, to be paid for out of the highway fund of the county.

SECTION 5. That the County Highway Superintendent shall receive, as his or her compensation, a salary in accordance with Tennessee Code Annotated, §§ 54-7-106 and 8-24-102, as the Chief Administrative Officer over highways, payable in equal monthly installments out of the highway fund of the county. Each County Highway Commissioner shall receive as compensation for one (1) day's attendance at the first meeting in any month, the same amount members of the county legislative body receive for a regular meeting, and shall receive as compensation for each day's attendance at subsequent meetings in the same month, the same

amount as county legislative body committee members receive for committee meetings, plus a travel allowance in accordance with the standard travel policy of the county. No County Highway Commissioner shall be reimbursed for his or her travel expenses until he or she has filed, with the chairperson of the County Highway Commission, an affidavit setting forth such traveling expenses in detail. Per diem compensation and reimbursed travel expenses shall be paid to the County Highway Commissioners out of the highway fund of the county.

SECTION 6. The County Highway Superintendent shall be further empowered, as far as it may be within the law, to enter upon, work and maintain public drainage easements acquired by the county to provide for the water drainage and run-off within said public drainage easements. On or before the January 2003, session of the county legislative body, the county legislative body shall establish an official list of recognized public drainage easements in Rutherford County after receiving the recommendation of the County Engineer and County Highway Superintendent, which recommendation shall be subject to the advice and consent of the County Highway Commission. Thereafter, each January the county legislative body shall update such list, after receiving any recommendations for changes, amendments, additions or deletions from the County Engineer and County Highway Superintendent, which changes, amendments, additions or deletions must have the advice and consent of the County Highway Commission. Such recommendations shall include a summary of all changes from the public drainage easement listing submitted the previous year. In exercising authority over the work, construction and maintenance of public drainage easements, the County Highway Superintendent shall only perform such work on public drainage easements which shall have been included on the official list of recognized public drainage easements as established by the county legislative body.

SECTION 7. The County Highway Superintendent shall be required to furnish a bond or be covered by insurance in accordance with the Tennessee County Uniform Highway Law, codified in title 54, chapter 7, or as otherwise permitted by applicable law, including Tennessee

Code Annotated, § 8-19-101. Highway Commissioners shall likewise be required to furnish a bond or be covered by insurance in accordance with applicable law.

SECTION 8. No employee of the County Highway Department shall be hired, promoted, supervised, or compensated in a manner that creates a direct supervisory relationship with a relative of a County Highway Commissioner, the County Mayor, or the County Highway Superintendent, as defined herein. "Relative" means a spouse, parent, child, sibling, whether by blood, marriage, or adoption. The term shall not include more remote familial relationships unless a direct supervisory, hiring, or compensation relationship exists.

SECTION 9. Nothing in this act shall be construed as having the effect of removing any incumbent from office or abridging the term of any official prior to the end of the term for which such official was elected.

SECTION 10. If any provision of this act or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to that end the provisions of this act are declared to be severable.

SECTION 11. In the event the constitutionality or legality of this act is challenged, the County shall defend such challenge through its duly authorized legal counsel, and any costs associated with such defense shall be paid as provided by law.

SECTION 12. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Rutherford County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 13. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 12.